IMPERIAL LANE (PRIVATE) LIMITED

versus

MAYBURY ENTERPRISES t/a D'AGUAIR TYRES

HIGH COURT OF ZIMBABWE
MUTEVEDZI & NDLOVU JJ
BULAWAYO, 4 JUNE & 26 JUNE 2026

Criminal appeal

J. Mugova, for the appellant
P. Dube, for the respondent

MUTEVEDZI J: This appeal raises, on one hand, mundane questions which the courts have repeatedly dealt with and very intriguing and novel ones on the other.

[1] Both Imperial Lane (Private) Limited and Maybury Enterprises (Private) Limited t/a D'Aguiar Tyres, are corporates duly registered in terms of the company laws of Zimbabwe.

The factual background

[2] The dispute panned out as follows. Maybury Enterprises sued out a summons in the Magistrates Court. It claimed against Imperial Lane, the payment of USD$ 11 880 being rental arrears owed for the period November 2024 to April 2025; security deposit; collection commission charged at 10% of the amount owed; interest on the amount at 5% per annum calculated from 30 April 2025 to the date of full payment; and costs of suit. Imperial Lane entered appearance to defend. It also filed a special plea together with a counterclaim. The special plea was argued and dismissed. Imperial Lane later filed a plea on the merits to the main claim, and Maybury replicated thereto. The parties exchanged pleadings until the matter was ready for a pretrial conference. Before the pretrial conference could be held, Imperial Lane sought and obtained against Maybury Enterprises (which had become the defendant in reconvention), a default judgment on the counterclaim. The application for default judgment was predicated on Maybury Enterprises' alleged omission to enter appearance to defend and/or

to file its plea to the respondent's counterclaim. Needless to state, the default judgment was granted.

[3] Imperial Lane subsequently caused the issuance of a writ of execution. It was only then that Maybury said it became aware of the default judgment and filed an application for its rescission. The application was heard on 17 March 2026. At the hearing, Maybury raised a preliminary objection to Imperil Lane's opposing affidavit, arguing that it had not been properly commissioned because the commissioner of oaths had not dated it as required by law. The court a quo upheld that objection. As a result, it treated the application for rescission of the default judgment as unopposed. Despite the alleged lack of opposition, the trial magistrate still decided the matter on the merits and granted the application. She rescinded the judgment which had previously been entered in favour of Imperial Lane on its counterclaim.

The appellant's case

[4] Imperial Lane (hereinafter the appellant), was aggrieved by the decision of the court a quo as set out above and appealed against it to this Court. It raised a number of grounds of appeal which were couched in the following terms: -

a. The Court a quo erred at law and grossly misdirected itself by finding that the appellant's affidavit was defective and improperly before the Court, owing to the absence of two (2) dates on the opposing affidavit, when the position is not supported by the law
b. The Court a quo grossly misdirected itself by upholding the preliminary point, and finding that there was no opposition, when the matter was properly opposed
c. The Court a quo erred at law, and in fact by finding that there was no wilful default of filing a plea, when no explanation for the default was tendered by respondent to make such a determination
d. The Court a quo erred at law, and in fact by finding that respondent has a bona fide defence, when no explanation on the prospects of success on the merits of the matter was tendered by respondent
e. The Court a quo erred at law, and in fact by ordering a payment of costs when respondent had not discharged its onus.

[5] As is clear, the first and second grounds of appeal are one. In both of them, the appellant's major contention is that its notice of opposition and the opposing affidavit, were properly before the court aquo notwithstanding the absence of two dates separately inserted by the deponent and the commissioner of oaths. It maintained that the affidavit had in fact been sworn to at Bulawayo before a duly authorised commissioner of oaths, and that the omission of a second date did not invalidate it. In its view, the defect was merely technical and did not go to the root of the affidavit's validity. The appellant accordingly submitted that the court a quo

erred in striking out the opposition and proceeding to treat the application for rescission of the default judgment as unopposed.

[6] The fifth ground of appeal is an invalid one. The award of costs is a discretion reposed in the trial court. A party cannot appeal against a discretion. He/she/it is only permitted to appeal against an award of costs solely in circumstances where he/she/it can prove that the presiding officer exercised their discretion arbitrarily, capriciously, or unreasonably. Put in another way, it must be shown that the discretion was not exercised judiciously. In this case, no such allegations were made, rendering the ground totally unsound and unjustifiable. The third and fourth grounds are self-explanatory and need no elaboration.

[7] In motivating its appeal, the appellant further relied on the procedural framework governing counterclaims. It drew the Court's attention to O 9 r 1 of the Magistrates Court (Civil) Rules, 2018, (the Rules), which provides that the rules applicable to main claims shall apply equally to counterclaims, except that no appearance to defend is required and that the time limits shall run from the date of delivery of the counterclaim. On that basis, it maintained that the respondent was obliged to file a plea within seven days of service of the counterclaim, and its failure to do so justified the entry of default judgment. The appellant further rejected the respondent's reliance on O11 r 3(b), which permits barring and judgment in default of plea after service of a notice to plead. It submitted that O11 must be read together with O16, which sets out specific circumstances under which a plea must be lodged. In its view, none of those circumstances applied in the present case, and that the respondent could not insist on a notice to plead before being placed in default. It said the respondent's omission to file a plea within the prescribed period amounted to willful default, and that rescission was therefore improperly granted.

The respondents' case

[8] The respondent maintained its position that the court aquo was correct in its finding that the default judgment had been improperly obtained because it (respondent) had never been in willful default. It also supported the trial court's finding that the appellant's opposing affidavit was defective for want of the commissioner of oaths' date. The respondent equally directed the court to O 9 r 3 of the Rules. It submitted that a counterclaim, once filed, is treated as a

cross-action. The rules governing pleadings in main claims must therefore apply equally to counterclaims. It further emphasised that, unlike with the main claim, it is not necessary to enter appearance to defend a counterclaim. On that basis, the respondent submitted that a notice to plead ought to have been served on it before default judgment could properly be sought. It maintained that the appellant's failure to serve such notice rendered the default judgment premature and irregular. In its view, counterclaims are governed by the same procedural safeguards as main claims.

Issues for determination

[9] This appeal turns on two main issues. The first concerns the validity of the appellant's opposing affidavit in the court a quo. Put in another way, the question is whether or not the magistrate was correct in striking it out as defective on account of the absence of two separate dates, and consequently, treating the rescission application as unopposed. The second issue relates to the propriety of the rescission itself, that is, whether or not the default judgment entered on the counterclaim was irregularly obtained in light of the procedural requirements specified by the Rules. All the other issues, although important, are ancillary.

The law relating to affidavits

[10] Before the hearing of this appeal, counsel for the appellant wrote to the Court requesting that this matter be heard by a panel of three judges because, as she put it, 'there were many conflicting judgments of this Court regarding the question of dates on affidavits.' We turned down that request for one reason. The debate regarding the requirement for two dates on an affidavit is a tired one. Admittedly, there have been various and divergent interpretations and pronouncements by the High Court regarding that question. See the cases of *Darcal (Private) Limited v Minister of Lands, Agriculture, Fisheries, Water & Rural Development N.O. & Others,* HB 19-26; *G & G Preserves (Pvt) Ltd t/a G & G Property Developers v Themba Sibanda t/a Bit Resources PBC Quary Mine & Another* HB 221/25; *Sheng An Mining (Pvt) Ltd v Mohamed Daka & Another* HB 65/24; *Bruce Ndoro & Another v Conjugal Enterprises & Another* HH 814-22; *Twin Castle Resources (Pvt) Ltd v Paari Mining Syndicate & Others* HH 153-21;

[11] The divergent views appear to have stemmed from the Court's decision in the case of *Mike Mandishaya v Maria Sithole* HH 798/15 in which CHITAKUNYE J (as he then was), was confronted by an affidavit which bore the following features; The respondent in that matter was examined by a doctor on 17 August 2011. The medical affidavit that was supposed to provide the evidence and on which the trial magistrate relied upon for the nature and extent of injuries sustained was signed by the Doctor on 28 August 2011 and was only commissioned by a commissioner of oaths on 10 June 2012. His LORDSHIP held that: -

> "An affidavit is a written statement made on oath before a commissioner of oaths or other person authorised to administer oaths. The deponent to the statement must take the oath in the presence of the commissioner of oaths and must append his or her signature to the document in the presence of such commissioner. Equally the commissioner must administer the oath in accordance with the law and thereafter must append his or her signature onto the statement in the presence of the deponent. The commissioner must also endorse the date on which the oath was so administered. These acts must occur contemporaneously."

[12] I have particularly singled out the decision in *Mandishaya v Sithole* above for the reason that, despite the different conclusions of the learned judges of this Court, that decision received the imprimatur of the Supreme Court, which effectively not only extinguished the debate but also settled the position. In *Ariston Management Services v Econet Wireless Zimbabwe Ltd* SC123-23, the Supreme Court endorsed the principle that the commissioning of an affidavit consists of the contemporaneous deposition by the deponent and the administration of the oath by the commissioner thereof. That contemporaneity can only be demonstrated primarily by what is stated in the jurat/tail end of the affidavit. The design of the jurat plays a critical role in conveying to the reader how the commissioner of oaths says the commissioning happened. The required contemporaneity of the procedures must appear on the jurat, *ex facie*, and unambiguously. Put differently, the jurat must tell the world when, where, and before whom the deponent signed the document and swore the oath. Both the deponent and the commissioner must append their signatures on the document, and the commissioner must endorse the date on which these acts were done in a manner that leaves no doubt that both of them fulfilled their particular obligations simultaneously. If this is done and is demonstrable on the jurat then, the affidavit will be valid.

[13] In *S v Hurle & Others* (2) 1998 (2) ZLR 42, cited with approval by CHITAKUNYE J, (as he then was) in the *Mandishaya* case(supra), GILLESPIE J had this to say;

> "A … commissioner of oaths, called upon to attest a document ,….is obliged, without fail, to have the deponent appear before him. He has no excuse for not administering the oath, for not calling upon the deponent to swear that the deposition is, to the best of his knowledge true in every respect. A deponent's signature has to be affixed in the presence of the commissioner. The commissioner's own signature is an assurance that all these procedures have been complied with." [my underlining].

[14] My reading and understanding of the *Mandishaya* authority as endorsed by the Supreme Court on two occasions is that these authorities have not said that for an affidavit to be valid BOTH the deponent and the commissioner of oaths must inscribe the dates on which they sign the document. Neither do these authorities say the deponent must endorse on the affidavit the date on which he or she signed the affidavit. If he or she does, that is welcome but it is not a necessity. I have neither read nor understood the Supreme Court authorities to be saying that a single date is insufficient for purposes of validity. None of these authorities talks of the deponent inscribing or endorsing a date on the affidavit?

[15] Instead, I have understood the authorities to mean that all the following procedures are mandatory for an affidavit to be valid: -

a. the deponent must take oath
b. before the commissioner of oaths
c. the deponent must append his/her signature on the affidavit
d. in the presence of the commissioner of oaths
e. the commissioner of oaths must also sign the affidavit at the same moment as the deponent
f. the commissioner of oaths must endorse the date when the deponent took oath and signed the affidavit and attest that it was the same date/time on which the commissioner administered the oath

[16] By doing the above, the commissioner of oaths certifies that the deponent's and his acts took place contemporaneously. I have further understood the law from the authorities to be that, in cases where both the deponent and the commissioner of oaths date the affidavit, no issue arises as long as it is the same date inscribed twice. It eliminates doubt but is not a necessity. However, where the date is inscribed once on the affidavit, it must be inscribed by the commissioner of oaths. Where it is not inscribed by the commissioner of oaths but by the deponent, the jurat must be designed in such a way that the commissioner of oaths will easily convey the message that all that

the deponent did and had to do happened before him/her. Failure by the jurat to clearly convey that message will mean the affidavit is defective. Because he or she is an officer of the court, the commissioner of oaths' signature and message on or about an affidavit is the only assurance to the world that all procedures were well complied with in accordance with the law. The functions of the commissioner of oaths in relation to court documents is akin to those of the Sherriff. His /her certification in the form in compliance with the requirements set out, is prima facie evidence that the deponent took oath before him/her. In my view therefore, where in the jurat it is written that all the procedures happened before the commissioner of oaths ["BEFORE ME" as is generally endorsed] that suffices for the validity of the affidavit. To argue otherwise would be to emphasise form over substance. The issues which I highlight above are supported by FORM1, in Supreme Court of Zimbabwe Rules 2025. That form appears in exactly the format I advocate for above. I reproduce it here and bold the jurat for completeness and emphasis: -

> FORM 1 [Rule 14(2)(c)]
> AFFIDAVIT OF…. IN TERMS OF R14(2)(c)
> I……., do hereby make oath and swear that:
> 1. I am the Appellant/Respondent* in this matter and the facts deposed to herein are within my personal knowledge and to the best of my belief true and correct.
> 2. I served a copy of ….. on the Appellant/Respondent/ registrar/presiding officer/administrative officer etc.*
> 3. I served it on dd/mm/yy and by .... at hh:mm in the morning/ afternoon/evening. *
> 4. I affirm that the manner of service I effected is in regular and it is in terms of the law.
>
> **Thus, sworn to at, ……this ……day of ……20…….**
>
> **Signed** **…….**
> **…….** **(Deponent's name)**
>
> **BEFORE ME,** **……**
> **Commissioner of Oaths**

[17] As is clear, the above template is part of our law and demonstrates that it is the commissioner of oaths who is speaking in the jurat and not the deponent. The acts required are not merely aesthetic but are safeguards central to the integrity of sworn statements. They ensure that in case of dispute, the solemn act of commissioning is verifiable. The same principles were recently reemphasized in the case of *Cosmas Nyamutswa v Caecilia Nyamutswa* SC29-26. Needless to say, those pronouncements by the Supreme Court, make it clear that the failure by

a commissioner of oaths to endorse the date on which he commissioned an affidavit is a fatal defect, striking at the validity of the affidavit itself.

[18] In this case, it was admitted at the hearing that as stated in the trial magistrate's ruling, the affidavit did not bear a date by the commissioner of oaths. It rendered the affidavit defective. The finding by the court aquo that there was no opposing affidavit and consequently that the matter was unopposed is therefore beyond reproach. The ground of appeal has no merit and is dismissed.

[19] The second question dealing with the procedures and the timelines which govern pleadings in counterclaims is not as settled as the one on affidavits. I must admit that there is a scarcity of precedent on those issues. As already stated, the default judgment in issue here was predicated on two grounds namely that the defendant in reconvention had neither entered appearance to defend nor filed its plea. I turn to deal with the issues.

The defendant in reconvention's appearance to defend

[20] This argument is an open and shut one. In fact, at the hearing, the appellant conceded that it was not necessary for the respondent to have filed a notice of appearance to defend the counter claim. I only deal with the issue for purposes of completeness and future guidance. Order 9 r 1 of the Rules, obviates in express terms, the need for entry of appearance to defend. It provides that: -

> **1. Application of rules to counter claims**
> "These rules shall, with such changes as may be needed, apply to counter claims, except that: -
> (a) It shall not be necessary to enter appearance to defend; and
> (b) All times which, in the case of the main claim, run from the date of appearance shall, in the case of a counterclaim, run from the date of delivery of the claim."

[21] The rationale for the above rule is easy to understand. On one hand, the purpose which is served by an appearance to defend is to advise the court and the person who brought a claim before it, that the defendant is desirous of contesting the claim and submits himself to the jurisdiction of the court. Yet on the other, it becomes superfluous to require entry of appearance to defend a claim in reconvention, because it is instituted by a

defendant who is already an official participant in the claim in convention and has already submitted to the court's jurisdiction.

The defendant in reconvention's plea

[22] On the face of it, a reading of O 9 r1 and O 16 r 1(1), suggests that the defendant in reconvention must file its plea within 7 days of delivery of the counterclaim, failing which he/she/it will be held in default. That it is so, is because, O 9 r 1 specifically commands that the rules shall apply to counter claims in every respect except the entry of appearance to defend. A literal interpretation of that rule does not create any absurdity. There is no reason therefore why the words used must not be accorded their ordinary grammatical meaning. That meaning is that once a claim in reconvention is delivered, the defendant thereof shall only skip the filing of a notice of appearance to defend. Thereafter, both the plaintiff in reconvention and the defendant in reconvention shall be bound by the timelines which govern main claims. The issues appear to pose no difficulty at all.

[23] Unfortunately, the difficulties begin to unravel when one seeks to reconcile the above default position with the safeguards which are embedded in O 11 r 3. That provision provides the procedure of barring; judgments in default of plea; and removal of bars. It is framed as follows: -

> 3.(1) the defendant **shall be barred** if he or she has **failed to deliver a plea** as provided by Order 16("Plea")-
> (a) **after the delivery of written notice by the plaintiff** calling upon the defendant to file his or her plea within five days of the receipt of such notice; **and**
> (b) on failure of defendant to do so **within that period** or further time that may be agreed by the parties;
> Whereupon the plaintiff may lodge with the clerk of the court a written request to have judgment entered with costs in the same manner as if the defendant had failed to enter appearance to defend
> (2) Unless the plaintiff earlier withdraws a bar by filing with the clerk of the court a notice of withdrawal of the bar, the defendant may apply to court for the removal of the bar. (Bolding is my emphasis.)

[24] What I note from the above rule, is that there is a significant difference between the position in the repealed Magistrates Court (Civil Rules), 1980 and the current rules. In the former rules, the procedure for automatic barring apparent in O 11 r 3 was conspicuous by its absence. Order 16 r 1 provides that a defendant shall file his/her plea within **seven** days

of entry of notice of appearance to defend or any of the other circumstances stated in subrules (b)-(f) therein. My reading of that rule is that it is not necessary for the plaintiff whether in the main claim or in reconvention to issue a notice to plead. Instead, the filing of a plea is by operation of law. Once a defendant has filed an appearance to defend, he/she is required to file his/her plea within seven days of that action. Interestingly, O 16 r 1 is simply a procedural rule. It does not state the penalty for or consequences of failure by a defendant to file the plea. The recourse for a plaintiff who is aggrieved by the failure is only found under O 11 r 3. What it means is that for the consequences specified under O 11 r 3 to ensue, a plaintiff must wait for the seven days which the defendant is allowed in terms of O 16 r 1 to elapse. Thereafter, and if the defendant has not already done so, the plaintiff must call upon him/her to file his/her plea within a further five days of the receipt of that notice. Only then does the defendant become automatically barred if he/she/it fails to file the plea. In addition, the law actually permits the parties to negotiate and agree a longer period within which the plea must be filed. Ordinarily therefore, a defendant will only become barred from filing his/her/it plea after the expiration of twelve days from the time of entry of appearance to defend. Put differently, a plaintiff may only apply for default judgment after the expiration of seven days from the date of entry of appearance to defend AND a further five days after he /she/it has given written notice to the defendant to file the plea.

[25] I have already said in the case of a counterclaim, notice of appearance to defend is dispensed with. The timelines begin to run from the date of delivery of the counterclaim. It must follow therefore that, the defendant in reconvention is expected to file the plea within seven days of the delivery of the claim. For him or her to do so, there is no requirement for the plaintiff in reconvention to issue a notice to plead. But as explained above, the defendant's failure to file the plea does not and cannot trigger an automatic bar from doing so. A Plaintiff cannot seek and obtain a default judgment without following the mandatory procedures prescribed under O 11 r 3.

[26] In this case, the respondent rightly argued that the appellant could not have lawfully obtained default judgment without first serving it with a notice to plead in terms of O 11 r

3(a) and its subsequent failure to plead in terms of subrule (b). That provision is not a mere formality but a substantive safeguard in the rules of court. It requires a plaintiff to deliver written notice calling upon the defendant to file its plea within five days, and only upon continued failure after such notice may the plaintiff request judgment. The reasoning is that while Orders 9 and 16 impose and set defined timelines, O 11 ensures that the drastic consequences of barring and seeking default judgment are preceded by an express warning.

[27] When the provisions of Orders 9, 16 and 11 are read together, the proper construction emerges. Order 9 r 1(b) and O 16 r 1(1) establish the time frames within which a plea must be filed in response to a counterclaim. The expiration of those periods places the defendant in default. Yet default, in itself, does not equate to being barred. As already explained, it is O 11 r 3(b) which prescribes the mandatory procedure for barring and obtaining judgment in default. It requires that the plaintiff must serve a notice to plead and afford the defendant a further five days to comply. Only upon continued failure after such notice may judgment be entered. The layered procedure reflects a deliberate and delicate balance by the law maker. Whilst promoting expeditious resolution of disputes, the rules also provide safeguards to ensure procedural fairness.

[28] In the present matter, the appellant unfortunately conflated the requirements. It sought to collapse the two stages into one and treated default under O16 as a sufficient basis to justify the grant of default judgment. That approach overlooked the protective function of O 11. Without service of a notice to plead, the bar procedure was not properly triggered, and the default judgment was therefore entered prematurely.

[29] In relation to the prospects of success, the trial court ruled that the respondent herein had bright prospects of success in the main matter because it had clearly refuted the allegations of misrepresentation and breach of contract. The respondent also demonstrated its basis for arguing that the lease agreement had been concluded and implemented. The court aquo also held that the respondent had paid rent, took occupation of the premises and even renovated it before unceremoniously abandoning it without lawfully terminating the lease agreement. From that, we have no apprehension that the respondent demonstrated that it had an arguable case and a *bona fide* defence in the main case.

Costs

[30] The general rule in this jurisdiction is that costs follow the cause. The respondent prayed for costs at attorney and client scale. Other than simply stating so, it did not motivate the award of such costs. I have no reason therefore to depart from the general rule.

Disposition

[31] In light of the foregoing, and considering all the factors cumulatively, I am satisfied that the magistrate did not misdirect herself in rescinding the default judgment which had clearly been erroneously sought and granted. The appellant's reliance on O 16 alone, without regard to the mandatory procedural steps in O 11 r 3 was ill-conceived. The rules at play here are designed to operate cumulatively. Whilst default arises by operation of law, upon the lapse of the prescribed period, barring and judgment require the additional step of demanding in writing, the filing of the plea and giving the defendant the five days within which to do so. The layered approach meant that the respondent in this case, could not be deprived of its entitlement to receive the notice to plead in terms of O 11 r 3 by the mere effluxion of time. Without having received it, the allegation that it was in willful default is untenable. Its default was therefore not intentional. The entry of the default judgment, no doubt became irregular.

[32] In the result, I order as follows:

a. The appeal be and is hereby dismissed with costs.

MUTEVEDZI J…….

NDHLOVU J…… I AGREE

Mlotshwa Solicitors, appellant's legal practitioners

Cheda and Cheda Associates, respondent's legal practitioners